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State/Territory Name: Louisiana

State Plan Amendment (SPA) #: LA-25-0015 and LA-25-0015-A

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DEPARTMENT OF HEALTH & HUMAN SERVICES
Centers for Medicare & Medicaid Services
7500 Security Boulevard, Mail Stop S2-01-16
Baltimore, MD 21244-1850



Children and Adults Health Programs Group

April 20, 2026

Seth Gold
Medicaid Executive Director
State of Louisiana Department of Health
Bureau of Health Services Financing
628 North 4th Street, Room 769
Baton Rouge, LA 70802

Dear Director Gold:

Your title XXI Children's Health Insurance Program (CHIP) State Plan Amendments (SPA), LA-25-0015 and LA-25-0015-A, submitted on June 30, 2025, with additional information submitted on April 2, 2026, have been approved. The effective date for these SPAs is June 3, 2025.

Section 2102(b)(3)(C) of the Social Security Act requires states to have a description in the state plan of procedures used to ensure that CHIP does not substitute for group health plan coverage. Through SPA LA-25-0015, Louisiana removes its waiting period policy, as required by CMS regulations at 42 CFR § 457.805(b), and updates its existing substitution monitoring strategies. Louisiana also adds a maximum percentage threshold to measure the level of substitution occurring in the state that, if exceeded, will prompt the state to work with CMS to identify additional strategies to prevent substitution. Through SPA LA-25-0015-A, Louisiana makes corresponding technical edits throughout the CHIP state plan to remove references to waiting periods.

Your Project Officer is Abbie Walsh. She is available to answer your questions concerning this amendment and other CHIP-related matters and can be reached at Abigail.Walsh@cms.hhs.gov.

If you have additional questions, please contact Mary Beth Hance, Director, Division of State Coverage Programs, at (410) 786-4299. We look forward to continuing to work with you and your staff.

Sincerely,
/Signed by Jessica Stephens/

Jessica Stephens
Acting Director

Amendment 35**LA SPA TN 25-0005-A****CHIP – Services to Incarcerated Youth**

Pursuant to the services for incarcerated youth requirements described in section 5121 of the Consolidated Appropriations Act, 2023, this SPA implements required coverage for incarcerated youth in the Children’s Health Insurance Program (CHIP).

Effective Date: January 1, 2025

Implementation date: January 1, 2025

Amendment 36**LA SPA TN 25-0015****CHIP – Substitution of Coverage**

The purpose of this SPA is to amend form CS20 in order to remove the waiting period for those beneficiaries who had private insurance within the 90 days prior to application.

This change is in accordance with CMS Final Rule 89 FR 22780.

Effective Date: June 3, 2025

Implementation date: June 3, 2025

1.4- TC

Tribal Consultation (Section 2107(e)(1)(C)) Describe the consultation process that occurred specifically for the development and submission of this State Plan Amendment, when it occurred and who was involved.

On June 17, 2025, notification of the State’s intent to seek approval from CMS to amend the provisions governing the Children’s Health Insurance Program (CHIP) in order to remove the waiting period for those beneficiaries who had private insurance within the 90 days prior to application in accordance with CMS Final Rule 89 FR 22780 was submitted to the Louisiana Tribes.

TN 25-0015 Approval Date:

Effective Date: June 3, 2025

In the event of a state or federally declared disaster or public health emergency, the State may modify the tribal consultation process by shortening the number of days before submission of the SPA and/or conducting consultation after submission of the SPA. The duration of the provisions may not exceed the duration of the state or federal disaster period.

4.1.3 ☒ Income of each separate eligibility group (if applicable):

For targeted low-income children in LaCHIP Affordable Plan, the income standard is above 212 percent of the FPL and up to and including 250 percent of the FPL.

For an unborn child enrolled in LaCHIP Phase IV, the income standard is from zero up to 209 percent of the FPL.

4.1.3.1-PC ☒ 0 percent of the FPL (and not eligible for Medicaid) through 209 percent of the FPL (SHO #02-004, issued November 12, 2002)

4.1.4 ☐ Resources of each separate eligibility group (including any standards relating to spend downs and disposition of resources):

4.1.5 ☒ Residency (so long as residency requirement is not based on length of time in state): **Beneficiaries must be residents of Louisiana.**

4.1.6 ☐ Disability Status (so long as any standard relating to disability status does not restrict eligibility):

**4.1.7 ☒ Access to or coverage under other health coverage:
LaCHIP Affordable Plan and LaCHIP Phase IV (unborn option) beneficiaries cannot have other creditable health insurance or access to the state employee health benefits.**

**4.1.8 ☒ Duration of eligibility, not to exceed 12 months:
The duration of eligibility is 12 months, without regard to changes in income or household composition except as described at 4.1.9.2. For unborn children, the duration of eligibility is from the month of conception or the first month of eligibility following conception, whichever is later, through the month of birth.**

**4.1.9 ☒ Other Standards- Identify and describe other standards for or affecting eligibility, including those standards in 457.310 and 457.320 that are not addressed above. For instance:
Targeted low-income children in LaCHIP Affordable Plan with income above 212 percent FPL and up to and including 250 percent FPL ~~will be subject to a waiting period for 90 days, except as specified in 4.4.4, for dropping group health coverage.~~**

4.4. Eligibility screening and coordination with other health coverage programs

States must describe how they will assure that:

- 4.4.1.** ☒ only targeted low-income children who are ineligible for Medicaid or not covered under a group health plan or health insurance (including access to a State health benefits plan) are furnished child health assistance under the plan. (Sections 2102(b)(3)(A), 2110(b)(2)(B)) (42 CFR 457.310(b), 42 CFR 457.350(a)(1) and 42 CFR 457.80(c)(3)) Confirm that the State does not apply a waiting period for pregnant women.

The State does not apply a waiting period to LaCHIP Phase IV (unborn option) beneficiaries.

- 4.4.2.** ☒ children found through the screening process to be potentially eligible for medical assistance under the State Medicaid plan are enrolled for assistance under such plan; (Section 2102(b)(3)(B)) (42CFR, 457.350(a)(2))

Screening procedures identify any applicant or enrollee who would be potentially eligible for Medicaid prior to enrollment in the Title XXI separate child health program.

- 4.4.3.** ☒ children found through the screening process to be ineligible for Medicaid are enrolled in CHIP; (Sections 2102(a)(1) and (2) and 2102(c)(2)) (42CFR 431.636(b)(4))

Any applicant who is ineligible for Medicaid and appears eligible for the separate child health program is automatically reviewed for separate child health program eligibility.

- 4.4.4.** ☒ the insurance provided under the State child health plan does not substitute for coverage under group health plans. (Section 2102(b)(3)(C)) (42CFR, 457.805)

~~**See CS20. In addition to using employer-based coverage information provided on applications, Louisiana conducts a cross-match with group health insurance providers through our third-party liability contractor to determine current and recent health insurance status. This match assists in verifying that the applicant is uninsured and has met the required period of uninsurance. This match also**~~

~~provides an independent source of data for the number of individuals who applied for CHIP and had private insurance within the previous 90 days prior to application. With this data, the State will be able to more accurately determine the extent to which substitution is occurring. The State does not impose a period of uninsurance which exceeds 90 days from the date a child, otherwise eligible for CHIP, is disenrolled from coverage under a group health plan.~~

~~Applicants who involuntarily lose coverage are not subject to the 90-day waiting period. A waiting period may not be applied to a child following the loss of eligibility for and enrollment in Medicaid or another insurance affordability plan.~~

~~The State allows exemptions from the waiting period for the following reasons:~~

- ~~1. The premium paid the family for coverage of the child under the group health plan exceeded five percent of household income;~~
- ~~2. The child's parent is determined eligible for advance payment of the premium tax credit for enrollment in a qualified health plan (QHP) through the Exchange because the employer-sponsored insurance (ESI) in which the family was enrolled is determined unaffordable in accordance with 26 CFR 1.36B-2(c)(3)(v);~~
- ~~3. The cost of family coverage that includes the child exceeds 9.5 percent of the household income;~~
- ~~4. The employer stopped offering coverage of dependents (or any coverage) under an employer-sponsored health insurance plan;~~
- ~~5. A change in employment, including involuntary separation, resulted in the child's loss of ESI (other than through full payment of the premium by the parent under The Consolidated Omnibus Budget Reconciliation Act (COBRA));~~
- ~~6. The child has special health care needs;~~
- ~~7. The child lost coverage due to the death or divorce of a parent;~~
- ~~8. Involuntary termination of health benefits due to a long-term disability or other medical condition;~~
- ~~9. Child has exhausted coverage under COBRA continuation provision (i.e., COBRA expired); or~~
- ~~10. Lifetime maximum reached.~~



CHIP Eligibility

State Name: Louisiana

OMB Control Number: 0938-1148

Transmittal Number: LA - 25 - 0015

Separate Child Health Insurance Program Non-Financial Eligibility - Substitution of Coverage

CS20

Section 2102(b)(3)(C) of the SSA and 42 CFR 457.340(d)(3), 457.350(i), and 457.805

Substitution of Coverage

- ☒ The CHIP Agency provides assurance that it has methods and policies in place to prevent the substitution of group health coverage or other commercial health insurance with public funded coverage. These policies include:

- ☐ Substitution of coverage prevention strategy:

Add	Name of policy	Description	Remove
Add	Monitoring Health Insurance Status	Louisiana uses both health insurance information provided by the beneficiary and obtained by the Beneficiary Third Party Liability interface (BTPL) to monitor health insurance coverage. BTPL is an interface between the Eligibility & Enrollment (E&E) system and the third party liability contractor which provides third party liability information which updates the health coverage of a beneficiary. This file is processed daily. In addition, Louisiana verifies health coverage information using the Coordination of Benefits (COB) interface. COB identifies and provides verified health coverage records both on-demand and in real-time at application, case changes, and renewal. The E&E system receives the health coverage information and updates the individual's health coverage details. Children are not disenrolled during the continuous eligibility period regardless of insurance status.	Remove
Add	Maximum Threshold	Louisiana tracks the number of children who are enrolled in CHIP that have access but have declined private health insurance and the number of children who cannot be enrolled or renewed because they have private coverage. Louisiana will use these numbers to determine if substitution of group health coverage for CHIP is a concern in Louisiana. If either the percentage of children approved for CHIP who had access to private insurance or the percentage of children who cannot be enrolled or renewed because they have private insurance exceeds a threshold of 12 percent, Louisiana will take additional measures to address substitution of health coverage.	Remove

A waiting period during which an individual is ineligible due to having dropped group health coverage. No

If the state elects to offer dental only supplemental coverage, the following assurances apply:

- ☐ The other coverage exclusion does not apply to children who are otherwise eligible for dental only supplemental coverage as provided in section 2110(b)(5) of the SSA.
- ☐ The waiting period does not apply to children eligible for dental only supplemental coverage.



CHIP Eligibility

PRA Disclosure Statement

According to the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number. The valid OMB control number for this information collection is 0938-1148. The time required to complete this information collection is estimated to average 50 hours per response, including the time to review instructions, search existing data resources, gather the data needed, and complete and review the information collection. If you have comments concerning the accuracy of the time estimate(s) or suggestions for improving this form, please write to: CMS, 7500 Security Boulevard, Attn: PRA Reports Clearance Officer, Mail Stop C4-26-05, Baltimore, Maryland 21244-1850.

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